

02:00 PM **LINE 9**

25-CIV-07053

SVETLANA YEPANECHNIKOVA VS. 200 ASSOCIATES, LLC, ET AL

SVETLANA YEPANECHNIKOVA
200 ASSOCIATES, LLC

JOHN F. DOMINGUE

Motion to Quash Service of Summons

TENTATIVE RULING:

Specially appearing defendant Alexandra Degai's motion to quash service of summons of plaintiff Svetlana Yepanechnikova's complaint filed September 11, 2025, is **DENIED**.

Degai shall file an answer no later than ten (10) court days following notice of entry of this order.

A. Background

The underlying action involves a loan amongst friends to assist defendants in the purchase and improvement of an investment property. Plaintiff's complaint alleges plaintiff agreed to loan defendants \$690,000 in exchange for a deed of trust so she would have an interest in the property to secure her loan, but defendants later refused to providing or recording the deed of trust, and also failed to pay back the loan.

Defendant Alexandra Degai has moved to quash service, arguing that plaintiff failed to properly serve her in compliance with California law, and that as a result, the court lacks personal jurisdiction over Degai. Plaintiff opposes, contending that several efforts at personal service were made at Degai's personal residence, which she shared with her husband and co-defendant, however both parties contrived to evade service upon Degai. The registered process server ultimately served Degai's husband and mailed a copy of the summons, complaint and related papers. (Declaration of Krista Clawson iso Plaintiff's Opp., filed June 10, 2026, ¶ 2-4, exhs. A-C.)

B. Legal Standard

A motion to quash under Code of Civil Procedure, section 418.10, subdivision (a) may be made in a special appearance for the purpose of contesting personal jurisdiction due to improper service. (Code Civ. Proc., § 418.10, subd. (a)(1); *Stancil v. Superior Ct.*, (2021) 11 Cal.5th 381, 393 (*Stancil*).)

"[A] court gains jurisdiction over the defendant from the time the defendant is served with a copy of the summons and the complaint on which it's based, as required under the Code of Civil Procedure. (Code Civ. Proc. §§ 410.50, 412.20; *Stancil, supra*, 11 Cal.5th at p. 392.) "On a motion to quash service of summons, the plaintiff bears the burden of proving by a

preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts.” (*Brown v. Garcia* (2017) 17 Cal.App.5th 1198, 1203, citations omitted.)

C. Discussion

Specially appearing defendant Alexandra Degai contends that the substituted service upon her — which was effected by leaving the summons and complaint, and related papers with her husband at their personal residence — was improper because she did not receive a written paper summons by U.S. Mail. Plaintiff’s opposition briefing, however, shows that a paper copy was mailed. First, the opposition brief asserts, and the sworn proof of service attests, that plaintiff’s registered process server made no less than four attempts at personal service before a copy was left with a competent household member, that is Degai’s husband and co-defendant, who was informed of the contents. Moreover, the declaration signed by the registered process server states that she “plac[ed] a true copy of each document in the United States mail, in a sealed envelope by First Class mail with postage prepaid” and addressed to Alexandra Degai at her home address. (Clawson Decl., ¶¶ 2-6, exhs. A-C.) The registered process servers’ sworn proofs of service (*id.*, exh. C), filed with this court raise a rebuttable presumption of valid service that defendant’s bare denial of receipt cannot overcome.

The authority Degai relies upon for her proposition regarding mailing, *Evartt v. Superior Court* (1979) 89 Cal.App.3d 795, 800 (*Evartt*), is distinguishable. In that case, the plaintiff had failed to effect service on defendant notwithstanding that “it was inferable” that she knew his address. Plaintiff argued that time to serve was tolled for a few weeks while defendant was outside of California. The Court of Appeal expressly stated it did “not discuss or resolve petitioner’s further contention that because service upon him is not deemed complete until 10 days after mailing of the summons and complaint (see § 415.20, subd. (b), fn. 2, Ante) the 3-year limitation in section 581a expired before that time and he is in any event entitled to a dismissal.” (*Id.*, at pp. 802-803.) Rather, *Evartt* reversed the trial court’s denial of the motion to quash on the grounds that plaintiff did not meet her burden to show reasonable diligence to effect personal service. “Here, real party clearly failed to carry her burden, having not presented one scintilla of information or explanation for her failure to attempt personal service for 2 years and 363 days, during all of which time except for very short periods defendant was available for service at his residence close by. . . . Real party’s 11th-hour token efforts cannot be considered independent of her unexplained neglect during the 2 years and 363 days as it would be incongruous to hold that neglectful conduct can constitute an excuse for not exercising reasonable diligence.” (*Id.*, at pp. 801-802.) Such is not the case here.

Accordingly, plaintiff has carried her burden to demonstrate that service was properly effected, and specially appearing defendant’s motion is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and

provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

26-UDL-00420

ASN TANFORAN CROSSING I LLC VS. NYA LAVEAU, ET AL

ASN TANFORAN CROSSING I LLC
NYA LAVEAU

LAURIE LI
PRO SE

Motion for Leave to Amend Complaint

TENTATIVE RULING:

Plaintiff's unopposed motion for leave to amend the complaint to correct the name of the property owner is **GRANTED**. Plaintiff shall file the proposed first amended complaint (FAC) within five (5) days of notice of entry of this order and must personally serve the FAC on defendant at that time, unless she has agreed to email service. Defendant shall have ten (10) court days to respond to the FAC, excluding Saturdays, Sundays, and holidays. (Code Civ. Proc., § 1167, subd. (a).)

Plaintiff seeks to amend the complaint, which names ASN Tanforan Crossing I, LLC as the plaintiff to comport with the lease agreement, which identifies the property owner as ASN Tanforan Crossing II, LLC. Plaintiff's counsel's declaration states that he discovered the error on May 19, 2026. The motion to amend the complaint was filed on May 27, 2026. Notice of reassignment, and notice of the pretrial conference was sent to the parties on May 15, 2026, and the notice of trial was sent to the parties on June 10, 2026.

Defendant has not responded to the motion. She did, however, answer the complaint and did not raise the issue of the mis-named plaintiff. Because this is an unlawful detainer proceeding, she may appear at the hearing, and if she opposes the motion, may do so orally. If defendant opposes the amendment, she must state facts demonstrating that she would be prejudiced by the amendment.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.



POSTED: 11:00 AM